

**Before the
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-07

Impact Products, LLC *et al.* v. CMA CGM S.A.

**RESPONDENT CMA CGM S.A.'S
MOTION FOR CONFIDENTIAL TREATMENT**

Respondent CMA CGM S.A. (“CMA”), by counsel, pursuant to 46 C.F.R §§ 502.69 and 502.5(b), moves for confidential treatment of its Appendix and states as follows in support thereof:

The Proposed Findings of Fact and Appendix accompanying CMA’s Opposition Brief include or reference CMA’s invoices, and information therefrom, which contain confidential, proprietary, and commercially sensitive pricing, rate, and other information. The terms contained in CMA’s invoices cannot be ascertained through outside sources and the business information they contain would cause significant prejudice and harm to CMA if disclosed. Accordingly, they are subject to the “Confidential Information” designation in the Protective Order entered July 31, 2024, requiring CMA to file both public and confidential versions with its Appendix.

For the foregoing reasons, CMA respectfully requests that:

1. CMA’s invoices, and information therefrom, as included in the Respondent’s Appendix (RX169-245) be kept confidential; and
2. CMA be allowed to submit both a confidential and a public version of the Appendix for which it seeks confidential protection pursuant to 46 C.F.R. § 502.5(a)(2).

Date: October 18, 2024

Respectfully submitted,

/s/ K. Barrett Luxhoj

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CERTIFICATE OF SERVICE

I certify that on the 18th day of October 2024, a true copy of the foregoing was served by electronic mail on all counsel of record as follows:

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